

Smt Chandana M vs Sri. Arunkumar (Siddaraju) on 13 September, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:33190
CP No. 280 of 2021

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 13TH DAY OF SEPTEMBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT

CIVIL PETITION NO. 280 OF 2021

BETWEEN:

SMT. CHANDANA M
W/O. SRI. ARUNKUMAR (SIDDARAJU),
AGED ABOUT 22 YEARS
R/AT NO.3498, 6TH CROSS,
GAYATHRINAGAR, 2ND STAGE,
SRIRAMPURA, BENGALURU NORTH,
BENGALURU -560021.

...PETITIONER

(BY SMT. HEMAVATHI J., ADV. FOR
SRI. CHANNAKESHAVASWAMY S., ADV.)

AND:

SRI. ARUNKUMAR (SIDDARAJU)
S/O. SRI. SIDDAMALLAIAH,
AGED ABOUT 33 YEARS
R/AT BILUGULI VILLAGE,
DUDDA HOBLI, MANDYA TALUK,
MANDYA- 571129.

Digitally signed by
A K CHANDRIKA
Location: High
Court of Karnataka

...RESPONDENT

(BY SRI. SHAKEER ABBAS M., ADV.)

THIS PETITION IS FILED UNDER SECTION 24 OF CPC,
PRAYING TO 1. PASS AN ORDER FOR TRANSFER OF PETITION IN
M.C.NO.54/2021 FILED BY THE RESPONDENT ON THE FILE OF PRL.
SENIOR CIVIL JUDGE AND CJM AT MANDYA TO THE COURT OF

PRINCIPAL 1ST ADDL. FAMILY COURT AT BENGALURU IN THE INTEREST OF JUSTICE AND EQUITY. AND 2. GRANT SUCH OTHER RELIEF/S AS THIS COURT DEEMS FIT UNDER THE CIRCUMSTANCE OF THE CASE, IN THE INTEREST OF JUSTICE.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The petitioner, wife of the respondent is before this Court under Section 24 of CPC with a prayer to transfer M.C.No.54/2021 pending on the file of the Principal Senior Civil Judge and CJM at Mandya to the Court of Principal Family Court at Bengaluru.

2. Heard learned counsel Smt.Hemavathi.J., for Sri.Channakeshavaswamy.S., learned counsel for the petitioner/wife and there is no representation for the respondent. Even on the earlier occasion also there was no representation.

3. The learned counsel for the petitioner would submit that marriage of the petitioner and respondent was solemnized on 02.02.2018 and from the marriage, they have a child by name 'Siddarth', aged about 5 years. Learned counsel for the petitioner/wife would submit that petitioner and respondent are living separately, due to various reasons. The respondent/husband filed M.C.No.54/2021 under Section 13(1)(ia) and (ib) of the NC: 2023:KHC:33190 Hindu Marriage Act, 1955 seeking dissolution of marriage before the Senior Civil Judge and CJM at Mandya. Learned counsel for the petitioner/wife would submit that since the petitioner has no income of her own and as she is depending on her parents along with her child for their livelihood, it would be difficult for the petitioner/wife to travel from Bengaluru to Mandya. Further, learned counsel would point out to Annexure-C and submits that respondent/husband is also working and residing at Bengaluru. Thus, she prays for allowing the civil petition.

4. In a petition filed under Section 24 of CPC for transfer, more particularly, in matrimonial cases, the Court shall have to take note of the inconvenience or hardship that would be caused to the wife and also social and financial status of the parties.

5. The petitioner/wife is not working and she is not having income of her own and she is depending along with her child on her parents for their livelihood. Further, from Annexure-C, it appears that petitioner/wife is also residing NC: 2023:KHC:33190 at Bengaluru. In the facts and circumstances of the case, it would be difficult for the petitioner/wife to travel from Bengaluru to Mandya to attend proceedings in M.C.No.54/2021. If the prayer of the petitioner/wife is not allowed, there would be more hardship and inconvenience to the petitioner/wife. Hence, the following:

ORDER

- 1) Civil Petition filed under Section 24 of CPC is allowed.
- 2) The proceedings in M.C.No.54/2021 pending on the file of the Principal Senior Civil Judge and CJM at Mandya is directed to be transferred to the Court of Principal I Additional Family Court at Bengaluru for further consideration in accordance with law.

Sd/-

JUDGE NC CT:bms